

been raised. The paperwork appears to be in order, with the exception that the distribution does not appear to be correct. The original Petition stated under penalty of perjury that the decedent was survived by issue of a deceased child. Those biological grandchildren were identified as Eric and Meghan. Those two would be the only intestate heirs. This issue will need to be addressed. Additionally, the report does not contain the information required by CRC Rule 7.550. The report is required to include information regarding creditor's claims (i.e., the name of the creditor, the amount of the claim, whether it was allowed or rejected, whether it was paid, and the amount that was paid. The report is required to give a description of all sales, purchases, and changes in form of assets. The report is required to provide a detailed schedule of receipts, gains, and losses where an amount other than the amount of the inventory and appraisal is used as a basis for calculating statutory fees. The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings. An Amended Report and Petition is required addressing the above defects. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF THOMAS MURRAY

Case Number: 22PB-0031748

This matter is on calendar for Status of Administration. A Petition for Final Distribution has been filed and is noticed for hearing on June 30, 2025. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF LINDA NIERENBERG

Case Number: 25PB-0032814

This matter is on calendar for an Amended Petition to Determine Succession to Real Property. The matter has been properly noticed. The Petition contains the following defects:

1. The Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes and must be used.
2. There is no Form DE-300 or Inventory and Appraisal attached, as required under item 8.
3. The Court notes the copy of the will attached to the Petition is completely illegible.

The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition must be filed correcting the defects on the updated Petition form. **No appearance is necessary on today's calendar.**

ESTATE OF WESLEY PHILLIPS

Case Number: 22PB-0031702

This matter is on calendar for hearing on the First and Final Account and Report and Petition for Final Distribution. The Petition indicates that the sole intestate heir, Anthony Garcia, has executed a disclaimer. The legal effect of a disclaimer is that the person disclaiming their interest in the estate is deemed to have pre-deceased the decedent. Probate Code § 282. Consequently, Anthony Garcia's intestate heirs are now the intestate heirs of the decedent and would be entitled to notice of these proceedings. Nothing has been filed identifying who Mr. Garcia's intestate heirs are, and they do not appear to have been given notice of the proceeding. The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An amended Petition or supplement to the Petition is required addressing the above defect. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF DORIS RODGERS

Case Number: 24PB-0032535

This matter is on calendar for further proceedings on a Petition for Letters of Administration. A Second Amended Petition was filed May 7, 2025. The matter has been properly noticed, with proof of service on file. The Public Administrator remains the Personal Representative of the estate.

As to Mark Curtin's Petition, a Second Amended Petition for Letters of Administration was filed May 27, 2025. The Petition contains the following defects:

1. No proof of publication has been filed. The Petition states publication will be arranged via "Facebook." Probate Code § 8121 specifies that notice must be published in a newspaper of general circulation where the decedent resided at the time of death or where the decedent's property is located. "Facebook" is not legally recognized as a newspaper for the purposes of publishing the Notice of Petition to Administer Estate.
2. There are no proper grounds marked under Item 3(e) that allows the Court to waive the requirement of a bond.
3. On the Petition, item 5(a) 7 or 8 must be marked.
4. The matter has not been properly noticed. The proof of service filed May 27, 2025, indicates Mr. Curtin served the documents himself. The documents must be served by someone age 18 or older who is not a party to this cause. Mr. Curtin, as a party to the cause, is precluded from serving his own documents.
5. The Court notes previous Petitions indicated that the decedent had a will, and a copy of the will has been attached to multiple filings by Mr. Curtin. The Petitioner is now requesting Letters of Administration and says there is not a will. If there is no will, then Mr. Curtin has no interest in the property, as he is not an intestate heir.

As a personal representative has already been appointed in this matter, and Mr. Curtin does not have any superior priority for appointment, his Petition is **DENIED**.

A Request to Dismiss Full Probate was also filed by Mr. Curtin May 27, 2025. The request has not been properly noticed. In addition, there is no valid legal basis for dismissing the current estate administration. It is true that there is a probate procedure for small estates. That procedure is appropriate when the person entitled to inherit the property is the Petitioner. Otherwise, a probate is required. The request to dismiss full probate is **DENIED**.

Lastly, the matter is also on calendar for further proceedings on a Petition for Order Directing Return of Possession of Real Property. The Court previously deemed the matter properly noticed, and Mark Curtin has filed several responses. The Court has received and reviewed the Status Report filed May 22, 2025, which requests an extension of time. The matter is continued to **Monday, June 9, 2025, at 2:30pm in Department 44** for further proceedings regarding the 850 Petition. **No appearance is necessary on today's calendar.**

ESTATE OF JANELLE SALLADY

Case Number: 25PB-0032896

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that no proof of publication has been filed. The Court notes the Petition states that publication will be arranged via the Mt. Shasta Herald. Probate Code § 8121 specifies that notice must be published in a newspaper of general circulation where the decedent resided at the time of

death. The Petition indicates the decedent was a resident of Shasta Lake, CA, located in Shasta County. The newspaper of general circulation in Shasta Lake, CA is the Record Searchlight. The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Proper proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF JACK SCHNEIDER

Case Number: CVPB22-0031397

This matter is on calendar for further proceedings regarding the First and Final Account and Report and Petition for Final Distribution. An Amended Petition has been filed and noticed for June 16, 2025. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF MARILYN SPRINGER

Case Number: 25PB-0032862

This matter is on calendar for hearing on a Petition to Determine Succession to Real Property. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition contains the following defects:

6. The Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Consequently, the court needs information to establish that the real property was the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes.
7. The attached Inventory and Appraisal is defective, as it does not contain an original signature under the Statement About the Bond and for the Probate Referee and fails to comply with California Rule of Court 2.303 and Local rule 15.19 to qualify as a "fax filing."
8. Item 11 fails to identify the decedent's interest in the property.
9. Attachment 14 fails to identify the relationships of the individuals to the Decedent.
10. A proposed order has not been lodged with the court, as required by Local Rule 15.06.

This matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file an Amended Petition curing the defects noted above on the updated Petition form. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF DENNIS STINE

Case Number: 24PB-0032646

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. However, the Personal Representative has filed a Status Report indicating that additional time is needed before the Final Inventory and Appraisal can be filed. This matter is continued to **Monday, August 4, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and